

TED: (15) 4143

Register No. :

REVISION : 2015

Signature:

Model Examination

## FOURTH SEMESTER EXAMINATION IN COMMERCIAL PRACTICE

### COMPANY ADMINISTRATION

Max. Marks : 100

Time : 3 hours.

#### PART A

(Answer the following Questions. Each question carries 2 marks.)

- I. 1. What is Corporate Personality?
2. What is a Quorum?
3. Define Managing Director?
4. What is Minutes of a meeting?
5. What is Casting Vote?

(5 X 2 = 10)

#### PART B

Answer any five questions. Each carry 6 marks.)

- II. 1. Explain the importance of Limited Liability of a Company.
2. 'Directors cannot appoint Directors'. Comment.
3. What is 'Notice of a Meeting'? What are its requisites?
4. State the different kinds of voluntary winding up available to Companies.
5. Explain the different types of resolutions passed by a Company at its General Meeting?
6. What are the disqualifications of a Director?
7. Explain How to prepare Agenda of a Meeting?

( 5 X 6 = 30)

#### PART C

(Answer one question from each group. Each question carries 15 marks)

#### UNIT I

- III. (a) Discuss the doctrine of Ultra Vires Acts of Directors of Company. What is the Legal effect of Ultra Vires Acts.

(9)

-: 2 :-

- (b) State the rules restricting the choice of a name for a limited Company.  
Company? (6)

Or

- IV. Explain the Incorporation Procedure of a Company? (15)

## UNIT II

- V. Explain the different ways of appointing a Director of a company. (15)

Or

- VI. (a) How is a Managing Director appointed? (7)  
(b) Distinguish between : Managing Director and Manager (8)

## UNIT III

- VII. (a) What are the statutory provisions regarding the holding of Annual General Meeting? (9)  
(b) What is a Class Meeting? When is it called? (6)

Or

- VIII. (a) Define Quorum. What is the Quorum for General Body meeting and a Board Meeting? (7)  
(b) What do you understand by Proxy? What are the Statutory provisions regarding Proxies? (8)

## UNIT IV

- IX. (a) What are the legal requirements to be complied with regard to recording of minutes and maintenance of Minute's book? (8)

- (b) What is the distinction between a Special Resolution and ordinary resolution. (7)

Or

- X. What are the circumstances under which a Company may be wound up Voluntarily? Distinguish between Members Voluntary Winding Up and Creditors Voluntary Winding Up. (15)

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